

3.

CASE #	CASE NAME	HEARING NAME
CVME2512617	WELLS FARGO BANK, N.A. VS SAMANIEGO	MOTION FOR SUMMARY JUDGMENT

Tentative Ruling: Motion unopposed.

Moving party: Plaintiff Wells Fargo Bank, N.A.
Responding party: Defendant Suridai L. Samaniego

Motion filed: 03/23/2026

Opp. filed: None

From commencement to conclusion, the party moving for summary judgment bears the burden of persuasion that there is no triable issue of material fact and that he is entitled to judgment as a matter of law. (*Aguilar v. Atlantic Richfield Company* (2001) 25 Cal.4th 826, 850.) When a plaintiff is the moving party, the plaintiff has the burden to produce admissible evidence on each element of a cause of action entitling him to judgment. (C.C.P. § 437c(p)(1).) The plaintiff does not have the burden to disprove affirmative defenses, as the burden then shifts to the defendant to show that a triable issue exists. (*Id.*)

The elements for a breach of contract claim are: (1) contract; (2) plaintiff's performance or excuse for nonperformance; (3) breach; and (4) damages. (*Wall Street Network, Ltd. v. N. Y. Times Co.* (2008) 164 Cal.App.4th 1171, 1178.)

Plaintiff meets its initial burden in demonstrating that Defendant applied for a credit card and later failed to make payments, resulting in an outstanding balance of \$11,704.45. (Hogan Decl. ¶¶ 9-23, Exhs. 1-2.)

Plaintiff also filed a memorandum of costs on March 19, 2026, seeking costs of \$815.00. Under Local Rule 1045(b), the pertinent part provides:

The entry of costs and fees shall be in accordance with the provisions of Code of Civil Procedure section 685.090, California Rules of Court rules 8.104 and 8.751 describing what constitutes entry, and any other applicable provision of law. In cases where a party is entitled to costs because a motion to tax or strike a cost memo was not brought, such costs shall be deemed entered upon the expiration of the time for making the motion.

Here, Defendant has not filed a motion to tax costs. Accordingly, once the time has passed, the costs are deemed a part of the judgment.

The Court **GRANTS** the unopposed MSJ. Court to sign the proposed order and proposed judgment.